

Writ Petition. No. 6356 of 2013.

Rana Zeeshan Ahmed

The ASJ etc.

20.02.2015 Mr. Jahanzaib Khan, Advocate for the petitioner.
Mr. Muhammad Nasir Chohan, AAG and Iftikhar, ASI
along with record.
Mr. Jahanzaib Masood Mir, Advocate for respondent
No.4.

By this single order, I intend to dispose of the writ petition bearing No.6356 of 2013 titled **“Rana Zeeshan Ahmad v. ASJ etc”** and writ petition No.6814 of 2013 titled **“Ibrar Nafees v. ASJ etc”** as both these writ petitions are interlinked and intermingled.

2. Through the instant writ petition bearing No.6356 of 2013 filed under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973, the petitioner has prayed for setting aside the orders dated 31.01.2013 and 25.02.2013. The learned ASJ, Lahore in his capacity as Ex-Officio Justice of Peace vide order dated 31.01.2013 has passed following order:-

“On receiving complaint SHO/Duty Officer is duty bound to act in accordance with law i.e an information regarding the commission of any cognizable offence must invariably be recorded in writing in terms of section 154 Cr.P.C and even in case of non cognizable offence must proceed in accordance with section 155 Cr.P.C.

In this situation, I while exercising the powers vested in me under section 22-A/22-B Cr.P.C, directed the SHO/Duty Officer of concerned P.S to act in accordance with law in view of above referred

mandatory provisions by recording the version of the petitioner and further proceed with the matter in the light of facts and circumstances.

In view of directions given above, the petition stands disposed of. File be consigned to the record room”

3. Whereas, through order dated 25.02.2013 the learned ASJ, Lahore in his capacity of Ex-Officio Justice of Peace vide order dated 25.02.2013 has passed the following orders:-

“The report of the SHO was summoned, the same has been received and perused. The SHO has recorded Rupt No.11 dated 10.02.2013 under Police Rules 24.4 regarding the occurrence and found the same as false and frivolous.

In this situation, I being Ex-Officio Justice of Peace without giving any observation lest it should prejudice the case of either side or subsequent proceedings, the matter is referred to CCPO, Lahore who is directed to look into the matter personally or get legal opinion from the concerned quarter, whether the legal requirement has been fulfilled or not by incorporating the above mentioned Rupt. If not, the same be done in accordance with law. With this observation, this petition stands disposed of. File be consigned to the record room”

On the other hand in the connected writ petition No.6814 of 2013, Ibrar Nafees the petitioner made following prayer:-

“In the above circumstances, it is most respectfully prayed that the writ petition may kindly be accepted and a direction may very kindly be passed to the respondent to record the statement and registered criminal case against the culprits, in the interest of justice.

It is also prayed that the respondent may also be proceeded under the Police Order 2002 and contempt proceedings may also be initiated against the respondent”

4. Briefly, respondent No.4/Ibrar Nafees, alleged that a shop No.11-A, situated at Mian Meer Shopping Centre, Lahore was allotted to one Muhammad Hussain by the Cantonment Board, Lahore, thereafter, respondent No.4's father namely Nafees Ahmad purchased said shop from Muhammad Hussain and also got possession of above stated shop. Nafees Ahmad died on 11.02.2011 and thereafter, Rana Zeeshan/the petitioner prepared fictitious documents with the connivance of the officials concerned of the Cantonment Board. After obtaining photo copies of the identity Cards of respondent No.4 and of his sister, obtained agreements executed between the original lessee and respondent's No.4-father. It is also alleged that the petitioner also obtained thumb impression and signatures of the respondent No.4 on the blank stamp paper to get transferred the shop in the name of respondent No.4.

5. Arguments heard. Record perused.

6. A bare perusal of the record annexed with this petition reveals that earlier petitioner-Rana Zeeshan Ahmad got registered criminal case against defacto complainant-respondent No.4 through FIR No.1301 of 2012 dated 12.11.2012 registered under sections 420/468/471 PPC at Police Station North Cantt, Lahore regarding same shop No.11-A. During investigation of the above said FIR, respondent No.4 moved application for

registration of criminal case before the learned ASJ on 19.01.2013. Later on, matter come up in High Court and on the direction passed in constitutional petition No.27767 of 2012 on 08.11.2012, cross version of respondent No.4 was registered. The allegations raised in the complaint/application are in respect of the alleged act of preparing of fictitious and forged documents. The application is lodged by respondent No.4 by suppressing the earlier application for registration of the case, application under section 22-A/22-B Cr.P.C, order passed thereon and filing of constitutional petition No.27767 of 2012 and order dated 08.11.2012 passed in writ petition, by virtue of which I.O of FIR No.1301 of 2012 lodged cross version of respondent No.4. Thereafter, earlier application was investigated and was found baseless on the ground that no case is made out as claim is fake and bogus as he could not produce any evidence with regard to his claim. Thereafter, respondent No.4 filed second application (subject matter of instant petition) wherein, he does not whisper anything about the earlier round of litigation i.e earlier application and subsequent proceedings taken upon it and closure of the same. Respondent No.4 has also not mentioned anything about the earlier application for registration of criminal case. The concealment of above said facts disclosed the mala fide of respondent No.4 and ulterior motive with which successive application for registration of criminal case came to be filed against the petitioner-Rana Zeeshan Ahmad. The subsequent application was filed to harass and put pressure upon the petitioner/defacto accused. The act of respondent No.4 is attempt to take vengeance against the petitioner

herein, for registration of criminal case No.1301 of 2012 dated 12.11.2012 under sections 420/468/471 PPC Police Station North Cantt, Lahore.

7. Coming to the instant case, I am of the view that respondent No.4 has been unable to make out a distinct and separate version. It is infact the same version upon which cross version of respondent N o.4 was lodged in above referred FIR. That being the legal and factual aspect, the same would in my considered view, the instant application for registration of criminal case under section 22-A/22-B Cr.P.C has been filed for same accusations leveled in the earlier application, the successive application came to be filed only to harass the petitioner. Para wise comments were also called by this court which also reflects the same picture. The learned ASJ/JOP erred in passing orders dated 31.01.2013 and 25.02.2013. For the reasons stated above, this constitutional petition No.6356 of 2013 has succeeded and the impugned orders dated 31.01.2013 and 25.02.2013 passed by the learned ASJ/JOP, Lahore have been declared null and void and the same are hereby set aside, whereas, W.P No.6814 of 2013 having no merits, is hereby dismissed.

(Aalia Neelum)
Judge

Approved for reporting.

Judge

Tariq